

Sheetal Singh v. Dakshinanchal Vidyut Vitran Nigam Ltd.

High Court of Judicature at Allahabad · Division Bench · 3 January 2019 · Writ-C No. 43562 of 2018 · **Writ dismissed; petitioner relegated to Clause 6.5.**

HEADNOTE

A writ seeking quashing of an electricity demand treated as a disputed bill is not entertained. The consumer must object before the Executive Engineer under Clause 6.5 of the U.P. Electricity Supply Code, 2005. Petition dismissed.

FACTUAL SUMMARY

Sheetal Singh petitioned the Allahabad High Court to quash a demand notice dated 22 December 2016 of Dakshinanchal Vidyut Vitran Nigam Limited, which sought recovery of Rs.5,75,178 as arrears of electricity dues. The controversy was a disputed electricity bill. Counsel were heard for the consumer and for the distribution company. The Court identified the Executive Engineer, Dakshinanchal Vidyut Vitran Nigam Ltd., Bhongaon, Mainpuri, as the officer before whom the statutory billing objection lies.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

disputed bill — alternative remedy before Executive Engineer

HOLDING

Where a writ seeks quashing of a demand notice for electricity arrears and the dispute is a disputed bill, the petition is not maintainable; the consumer must approach the Executive Engineer under Clause 6.5 of the Electricity Supply Code, 2005. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DEMAND OF RS.5,75,178 AND THE DISPUTED BILL

Merits of the arrears demand were not examined; the petitioner was directed to the Clause 6.5 forum. ¶ 1